

of action are **sustained, with leave to amend**. Any amended pleading shall comply with California Rules of Court, Rule 2.112.)

D. Demurrer to Prayer for Punitive Damages

A demurrer can only be sustained if it disposes of an entire cause of action. (*Daniels, supra*, 246 Cal.App.4th at 1167; *PH II, Inc., supra*, 33 Cal.App.4th at 1682-1683.) " 'There is no cause of action for punitive damages. Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294]. . . . "Punitive damages are merely incident to a cause of action, and can never constitute the basis thereof." ' [Citations omitted.]" (*Grieves v. Superior Court* (1984) 157 Cal. App. 3d 159, 163-164.) A motion to strike is the appropriate mechanism to attack a claim for punitive damages. (*Id.* at 164.)

The demurrer to the prayer for punitive damages cannot be sustained based on the foregoing authorities. The demurrer to the prayer for punitive damages is therefore **overruled**.

6. 9:00 AM CASE NUMBER: C24-01947
CASE NAME: DANA DENARDI VS. KEVIN DENARDI
HEARING ON ORDER OF EXAMINATION IN RE: DEBTOR: KEVIN DENARDI (BENCH WARRANT ISSUED AT 03.27.2026 HEARING)
FILED BY: DENARDI, DANA
TENTATIVE RULING:

On March 27, 2026 a hearing on a properly noticed Civil Subpoena (Duces Tecum) for Personal Appearance and Production of Documents, Electronically Stored Information and Things at Trial or hearing was held in Department 32. There was no appearance by the Defendant Kevin Denardi.

The court issued a bench warrant for Debtor Kevin Denardi for failing to appear at the hearing on March 27, 2026. The court held the warrant until April 10, 2026 at 9:00 a.m.

The court's records reflect that Debtor Kevin Denardi was served with notice of the April 10, 2026 hearing date, time and location and of the fact that the court was holding a warrant to today's date and would issue the warrant if Debtor did

not appear in court today.

IF DEBTOR KEVIN DEBTOR FAILS TO APPEAR IN PERSON, THE COURT WILL RELEASE BENCH WARRANT TO SHERIFF'S OFFICE FOR SERVICE. REMOTE OR ZOOM APPEARANCE IS NOT ACCEPTABLE.

7. 9:00 AM CASE NUMBER: C24-03265
CASE NAME: CORY GOODRICH VS. FCA US LLC, A DELAWARE LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES**
FILED BY: GOODRICH, CORY JUSTIN
TENTATIVE RULING:

The court grants the motion of Plaintiffs, as prevailing parties in this action brought pursuant to the Song-Beverly Consumer Warranty Act, to an award of attorneys' fees and costs. The court finds the requested fees are reasonable, as is the application of the requested Lodestar Enhancement. The court notes there may be a mathematical or typographical error in the amount prayed for in the Plaintiffs' Notice of Motion and Motion (where the total amount prayed for, \$27,481, did not appear to be mathematically correct), and awards \$37,590.00 in attorneys' fees and \$1,141.75 in costs, the amount stated in the Plaintiffs' Reply at page 8. The fees must be paid to plaintiffs' attorneys within 30 calendar days of service of notice of entry of this order on counsel for the Defendant.

8. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION IN RE: INTERVENE**
FILED BY: MOBILITAS INSURANCE COMPANY
TENTATIVE RULING:

The unopposed motion of Mobilitas Insurance Company ("Mobilitas") to Intervene as a Defendant and as a Cross-Defendant in this action is granted. Mobilitas shall file and serve its Proposed Answer in Intervention to the Complaint and its Proposed Answer in Intervention to the Cross-Complaint within 10 calendar days of this order.